

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

SAMSUNG ELECTRONICS AMERICA, INC., *Complainant*

v.

ORIENT OVERSEAS CONTAINER LINE LIMITED AND OOCL
(EUROPE) LIMITED., *Respondents and Third-Party
Complainants*

v.

SAMSUNG ELECTRONICS COMPANY, LTD., *Third-Party
Respondent.*

DOCKET NO. 24-17

Served: February 20, 2026

ORDER OF: Richard AMBROW, *Administrative Law Judge.*

ORDER FOLLOWING SECOND STATUS CONFERENCE

On February 13, 2026, I issued a Second Order Setting Status Conference that ordered the parties to appear for a status conference via Teams on February 20, 2026, at 10:00 a.m. Eastern Standard Time. The parties were to be prepared to discuss Respondent's Motion to Compel ("OOCL's MTC"), filed by Orient Overseas Container Line Limited and OOCL (Europe) Limited ("Respondent" or "OOCL"), as well as SEA's Motion to Compel Discovery ("SEA's MTC"), filed by Samsung Electronics America, Inc. ("Complainant" or "SEA").

As stated during the February 20 status conference, this Order is intended to serve as a summary of the status conference, and to be a document that the parties may reference and cite going forward.

Both OOCL's MTC and SEA's MTC are **DENIED WITHOUT PREJUDICE**. It appears that several of the issues raised in the respective motions to compel are still being resolved by the parties. Therefore, the parties are to continue to discuss issues raised in the motions to compel. The parties are to apply the following guidance:

- 1) Boilerplate objections, such as "vague and overly broad," are strongly disfavored. (*See, e.g., Liguria Foods, Inc. v. Griffith Laboratories, Inc.*, 320 F.R.D. 168, 187

(N.D. Iowa, Mar. 13, 2017) (“Indeed, the idea that such general or “boilerplate” objections preserve any objection is an ‘urban legend.’”)).

- 2) Contention interrogatories are generally permissible, but should not be served until near the end of discovery. Parties, however, are reminded that they have an obligation to supplement their discovery responses. (46 C.F.R. § 502.141(k)).
- 3) If either party chooses to answer interrogatories by means of producing business records, the responsive business records must be specified in sufficient detail to enable the interrogating party to locate and identify them as readily as the responding party could. (46 C.F.R. § 502.145(d)(1)).
- 4) In general, the burden of proof in an administrative law action is on the proponent of the rule or order. (5 U.S.C. § 556(d); *see also Port Elizabeth Terminal & Warehouse Corp. v. The Port Authority of New York and New Jersey*, Dkt. No. 17-07, 1 F.M.C.2d 264, 2019 WL 1376529, at *13 (ALJ Mar. 25, 2019) (settled on appeal, 1 F.M.C.2d 502 (FMC Dec. 19, 2019) (stating that “a complainant has the burden of proving by a preponderance of the evidence that the respondent violated the Act.”). Without further briefing, I do not address whether the burden of proof is affected by the Ocean Shipping Reform Act of 2022, or otherwise affected by the facts of this case.
- 5) The parties argue about the relevant date range for discovery. In general, the relevant date range for discovery is January 1, 2020, through December 31, 2022. I am not persuaded that items such as policies that pre-date or post-date the January 1, 2020-December 31, 2022, date range are relevant.
- 6) Several of SEA’s discovery requests seek OOCL’s policies, studies, or agreements with third parties, such as truckers or terminals. Whereas published tariffs are highly relevant, I am not persuaded regarding the relevance of non-published policies or third-party agreements.
- 7) In general, all documents with relevant container numbers, sea waybill numbers, or bill of lading numbers are subject to discovery, which would include documents such as arrival notices.
- 8) OOCL represents that it completed its document production. (*See* Joint Status Report 5 (January 2026), at 8). This does not appear to be accurate. For example, OOCL admits that it did not produce numerous documents directly responsive to SEA’s Request for Production 3, namely, arrival notices, arguing that SEA already was in possession of arrival notices, that arrival notices are not relevant, and that it would be unduly burdensome to search for and produce arrival notices. (*See* Respondent’s Response to SEA’s Motion to Compel Discovery, at App’x III -1-3). Or else, OOCL admits that relevant documents were either located in the electronic records of custodians not searched. (*Id.*, at App’x I – 3-5). OOCL admits that one document was held by a custodian whose records were searched, but the document was not found. (*Id.*). Thus, it appears that OOCL’s searches and productions have been deficient to

date. OOCL will be required to describe the searches it conducted as instructed in the ORDER below. Further, SEA and OOCL are to negotiate regarding OOCL's supplemental searches and productions.

- 9) The parties may make future motions to compel. To the extent the parties disagree with my guidance above, they may preserve their arguments in any future motions to compel.

Based on the above, it is **HEREBY ORDERED** that OOCL's MTC and SEA's MTC are both **DENIED WITHOUT PREJUDICE**. It is

FURTHER ORDERED that OOCL is to produce to SEA a sworn declaration no later than **March 13, 2026**, from one (or more) knowledgeable witness(es) describing: a) the process by which it performed document searches in response to SEA's discovery requests, including the date ranges used, the custodians or systems searched, and search terms used; b) identification of all other potentially relevant custodians or systems, including all persons in, and systems used by, OOCL's North American Customer Service, Demurrage and Detention during the January 1, 2020-December 31, 2022, timeframe; and c) the process by which OOCL charged demurrage, detention and other fees during the January 1, 2020-December 31, 2022, timeframe.

FURTHER ORDERED that the parties are to continue to provide status reports the first business day of every month until discovery is closed. It is

FURTHER ORDERED that the parties are to make a joint motion to amend scheduling deadlines contemporaneously with their March 2, 2026, status report, or alternatively, if the parties cannot agree to a joint motion, the parties are to file cross-motions along with their March 2, 2026, status report.

Richard C.

Ambrow Jr -S

Richard Ambrow
Administrative Law Judge

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